



Delaware County Commissioners, March 2nd, 2026

Meeting Metadata	Details
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Delaware County Commissioners Meeting Report

Meeting Date: March 2, 2026

Presiding Officer: Commissioner Regan (Board President)

1. Meeting Identification & Attendance

- **Call to Order:** The regular meeting of the Delaware County Commissioners was called to order at **00:00:02** by the presiding officer. Opening proceedings included the Pledge of Allegiance.
- **Attendance:**
 - **Present:** Commissioner Henry, Commissioner Brand, and Commissioner Regan.
 - **Absent:** None noted.

2. Preliminary & Procedural Business

- **Ceremonial Openings:** The board recited the Pledge of Allegiance and held an Employee of the Month presentation **00:00:40**. Delaware County Superintendent Don Chambers recognized Jimmy Brooks as the employee of the month for the county building.
- **Approval of Minutes:** **00:11:56** The board reviewed the minutes from the February 16 meeting, making minor corrections.

- **Action & Vote Disposition:** Approved with amendments by Voice Vote (Roll call: Henry - Yes, Brand - Yes, Regan - Yes).
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3. Substantive Business & Board Action

- **00:02:23 Fair Board Appointment**
 - **Sponsor / Presenter:** Commissioner Regan.
 - **Deliberation Summary:** Commissioner Regan nominated Amber Green to fill one of two open positions on the fair board, noting she would do a good job.
 - **Action & Vote Disposition:** Approved Unanimously by Roll Call (Brand - Yes, Henry - Yes, Regan - Yes).
- **00:03:11 Board of Zoning Appeals (BZA) Appointment**
 - **Sponsor / Presenter:** Commissioners.
 - **Deliberation Summary:** The board considered applicants for the BZA. An initial applicant, Stephen Hines, did not qualify as a Republican due to voting history. John Hamilton, a Monroe Township farmer with nearly 50 years of experience and previous service on the drainage and school boards, submitted a letter of interest as a Republican in good standing.
 - **Action & Vote Disposition:** Motion to appoint John Hamilton passed Unanimously by Roll Call (Henry - Yes, Regan - Yes).
- **00:07:28 Ordinance 2026-01: Right-of-Way Amendment (Removed from Table)**
 - **Sponsor / Presenter:** Commissioners / Legal Counsel John.
 - **Deliberation Summary:** The board discussed removing the right-of-way ordinance from the table. Community input included concerns from the Farm Bureau (which retained legal counsel for proposed language), as well as comparative situations in Adams and Madison counties regarding fiber optics and road set-backs. Commissioners emphasized protecting farmers during planting/harvesting while targeting misbehaving utility subcontractors. Legal counsel advised that ordinances do not require a "table" status and can instead remain on the agenda under "second reading" indefinitely without a statutory deadline.
 - **Action & Vote Disposition:** Removed from table and moved to Second Reading status by Voice Vote (Brand - Yes, Henry - Yes, Regan - Yes).
- **00:12:24 Administrative Plat & Right-of-Way Dedication (Ashton Land Surveyors)**
 - **Sponsor / Presenter:** Kathy Van Ice (Ashton Land Surveyors).
 - **Deliberation Summary:** Presented an administrative plat for property at 5801 East Centennial, dedicating 30 feet of right-of-way on the north side of the property.
 - **Action & Vote Disposition:** Approved by Voice Vote (Brand - Yes, Henry - Yes, Regan - Yes).
- **00:13:24 Highway Department Material & Fuel Bids**

- **Sponsor / Presenter:** Tommy Humber (Delaware County Highway Department) & Legal Counsel John.
- **Deliberation Summary:** Humber recommended accepting all aggregate material bids (Brooks Construction, Paving, and Irving Materials) to ensure pricing and supply flexibility. For fuel pricing, the board reviewed bids from Abest: Option 1 (escalating bid) vs. Option 2 (locked-in price for 12 months at \$2.11 for gasoline and \$2.52 for number two diesel). Commissioners debated market volatility due to Middle East conflicts; Henry favored locking in prices to mitigate risk.
- **Action & Vote Disposition:** Approved accepting all aggregate bids and accepting Abest Option 2 (12-month locked fuel price) by Roll Call (Henry - Yes, Brand - No, Regan - Yes).
- **00:17:10 Medical Plan Document Renewal**
 - **Sponsor / Presenter:** Josh Jarvis (Human Resources).
 - **Deliberation Summary:** Requested approval for the 2026 medical plan document (137 pages from McGriff), maintaining the I360 plan with no structural changes.
 - **Action & Vote Disposition:** Approved by Roll Call (Brand - Yes, Henry - Yes, Regan - Yes).
- **00:18:38 Community Enhancement Project (CEP) Groundskeeping Contract**
 - **Sponsor / Presenter:** Commissioner Regan.
 - **Deliberation Summary:** The CEP contract for maintaining the county building grounds was proposed at \$8,385 (down significantly from prior years as maintenance assumed mowing duties). Commissioners noted the upcoming bell relocation project in the front roundabout and agreed to ensure landscaping plans do not conflict.
 - **Action & Vote Disposition:** Approved to be paid out of EDIT Number Nine by Roll Call (Henry - No, Brand - Yes, Regan - Yes).
- **00:20:44 Property & Liability Insurance Agreement**
 - **Sponsor / Presenter:** Commissioners / USI.
 - **Deliberation Summary:** Finalized the property, casualty, and auto liability insurance transition from Travelers to a Chubb/Apex combination via USI. The agreement lowers administration fees from \$162,500 on a commission basis to an \$80,000 flat fee (a 51% reduction). The board considered a one-year versus three-year agreement.
 - **Action & Vote Disposition:** Approved a one-year agreement by Roll Call (Brand - Yes, Henry - Yes, Regan - Yes).
- **00:22:44 Muncie Police Department Drone Base Agreement (Tabled)**
 - **Sponsor / Presenter:** Commissioners.
 - **Deliberation Summary:** The city police department requested a semi-permanent installation of a traffic/accident-monitoring drone base on the county building roof, utilizing a ballasted mounting system to protect the roof membrane. Commissioners

noted public concerns regarding airport proximity/FAA guidelines and decided to table the item for further review.

- **Action & Vote Disposition:** Tabled by Voice Vote (Henry - Yes, Brand - Yes, Regan - Yes).
- **00:25:02 Ordinance 2026-03: Smoking Ordinance Amendment (First Reading)**
 - **Sponsor / Presenter:** Kylen Swackmer (Planning Commission).
 - **Deliberation Summary:** Introduced an amendment to County Ordinance 2011-012 (indoor smoking ban) to add a definition for "cigar lounges" and provide a targeted exemption for a proposed downtown cigar and bourbon bar. Planning and legal noted the county code needs minor alphabetical adjustments and coordination with the health department.
 - **Action & Vote Disposition:** Introduced for first reading by Voice Vote (Regan - Yes, Brand - Yes, Regan - Yes).
- **00:28:31 Old Business: 613 North Broadway, Albany (Property Demolition/Tax Waiver)**
 - **Sponsor / Presenter:** Mr. Brook.
 - **Deliberation Summary:** Provided an update on a blighted property in Albany with a burned-out house. The town is willing to take ownership via quitclaim deed contingent on waving back taxes, which requires auditor, treasurer, and assessor sign-off. No board action was required at this time.
- **00:20:21 Old Business: Fairgrounds Red Barn Demolition**
 - **Sponsor / Presenter:** Commissioners / Fair Board.
 - **Deliberation Summary:** A historic 1920s wooden barn at the fairgrounds sustained severe roof damage from recent snow and is beyond repair. The insurance deductible is \$50,000, which neither entity has, but demolition quotes are estimated under \$10,000 (cement floor to remain).
 - **Action & Vote Disposition:** Motion to proceed with demolition and solicit quotes (to be paid from fairgrounds EDIT allocations) passed by Roll Call (Brand - Yes, Henry - Yes, Regan - Yes).
- **00:40:25 Gaston Sidewalk Extension Warranty Deeds**
 - **Sponsor / Presenter:** Commissioners.
 - **Deliberation Summary:** The redevelopment commission required the commissioners to sign off on two warranty deeds for the Gaston sidewalk extension project: Tina K. Rogers (\$6,375) and Lampert One LLC (\$1,425), matching United Consulting estimates.
 - **Action & Vote Disposition:** Approved by Roll Call (Henry - Yes, Brand - Yes, Regan - Yes).
- **00:42:44 Financial Claims & Payroll Approvals**
 - **Sponsor / Presenter:** Commissioners / Auditor Eric.
 - **Deliberation Summary:**

- **Payment of Claims:** \$978,646.98 (includes website migration, Selma salt spreader, local roads/streets weather prep, Abest fuel, TIF allocations, and fair/drainage expenses). Approved by Roll Call (Brand - Yes, Henry - Yes, Regan - Yes).
 - **ARP Claims:** \$90,571.25 (includes administrative RQAW fees for bridge 51 and OpenGov software). Approved by Roll Call (Henry - Yes, Brand - Yes, Regan - Yes).
 - **Payroll (Feb. 25):** \$1,664,756.31. Approved by Roll Call (Brand - Yes, Henry - Yes, Regan - Yes).
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4. Open Public Comment / Citizen Forum

- **00:46:41 Mr. Yenser** (Newsman and Author): Addressed global tensions and praised the board for locking in commodity prices. Expressed caution regarding right-of-way enforcement on rural properties where owners historically maintained roads, supported cracking down on utility tear-ups, and raised privacy/surveillance concerns regarding the proposed police drone base and automated license plate readers (Flock cameras).
 - **00:48:56 Mike Katherine** (1000 East County Road 700 North, Muncie): Thanked the board for how they handled the right-of-way ordinance addressing his concerns, and offered brief remarks hoping for regional peace in the Middle East.
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5. Administrative Updates & Adjournment

- **Staff & Board Announcements:**
 - **State of the Community Address:** Scheduled for Thursday at 8:00 AM at the Horizon Convention Center (doors open at 7:00 AM).
 - **Fairgrounds Wastewater:** Commissioner Brand noted a verbal agreement with the Muncie Sanitary District to reclassify the fairgrounds from a commercial utility rate to a nonprofit rate, with a board vote scheduled for Wednesday.
 - **Legislative Updates:** Commissioner Brand provided an extensive summary of closed legislative sessions, covering bills related to housing local control (HB 1001), local income tax delay (HB 1210), community mental health funding (SB 4), data center water studies (HB 1406), township mergers (HB 270/1315), board appointment removal authority (HB 1161), Community Crossings matching grants (SB 179), shooting range zoning (SB 176), election record storage retention (SB 113), and EMS unfunded mandate protections (HB 1251).
 - **Town Hall Meeting:** First-quarter town hall scheduled for March 12 at 6:00 PM at 600 East Harris Street in Eaton.
 - **Health Department Coordination:** Commissioner Henry requested that Jamie Bane (Health Department) be included in upcoming discussions regarding the

smoking ordinance (Ordinance 2026-03).

- **Adjournment:** The meeting was officially recessed/adjourned via a motion made at **00:59:15** and approved by Voice Vote (Brand - Yes, Henry - Yes, Regan - Yes).

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